

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ORLANDO TORRES,

Plaintiff,

-against-

Index No:

SUMMONS

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NYPD 33rd PCT
PATROL OFFICER "JOHN" PAUL Shield # 20739

Basis of Venue:

Place of Occurrence

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Place of Occurrence: Columbia Presbyterian Hospital at 3959 Broadway New York, NY 10032

Dated: New York, New York
May 10, 2022

Andrew M. Laskin
Andrew M. Laskin, Esq.
HACH & ROSE, LLP
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Neil Torczyner, Esq.
HARFENIST KRAUT & PERLSTEIN LLP
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TO: THE CITY OF NEW YORK
1 CENTRE STREET
NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT
ONE POLICE PLAZA
NEW YORK, NY 10007

NYPD 33rd PCT PATROL OFFICER "JOHN" PAUL Shield # 20739
ONE POLICE PLAZA
NEW YORK, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
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VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NYPD 33rd PCT
PATROL OFFICER "JOHN" PAUL Shield # 20739,

Defendants.

-----X

Plaintiff, by his attorneys, HACH & ROSE, LLP and HARFENIST KRAUT &
PERLSTEIN LLP, complaining of Defendants herein, respectfully alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF**

1. On or about September 24, 2021, and at all times herein mentioned, Plaintiff, ORLANDO TORRES ("Plaintiff"), was and still is a resident of the County of New York, State of New York;
2. This action falls within one or more of the exceptions set forth in CPLR Section 1602;
3. The cause of action herein arose in the County of New York, State of New York;
4. On or about September 24, 2021, and at all times herein mentioned, Defendant, THE CITY OF NEW YORK, was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York;
5. On or about September 24, 2021, and at all times herein mentioned, Defendant, THE CITY OF NEW YORK operated the defendant, NEW YORK CITY POLICE DEPARTMENT;
6. On or about September 24, 2021, and at all times herein mentioned, Defendant, NYPD 33rd PCT PATROL OFFICER "JOHN" PAUL Shield # 20739 (hereinafter "OFFICER

PAUL”), was an employee of Defendant NEW YORK CITY POLICE DEPARTMENT and assigned to the 33rd Precinct;

7. That on or about December 20, 2021, Plaintiff served upon Defendant THE CITY OF NEW YORK, a Notice of Claim, setting forth the time when, the place where, and the manner in which the claim arose: and that said Notice of Claim was served within ninety (90) days of the date of the occurrence herein;
8. That on April 5, 2022, Plaintiff appeared for his 50H hearing;
9. That at least thirty (30) days have elapsed prior to the commencement of this action since the said service of the Notice of Claim as aforesaid and payment thereof has been neglected and/or refused by the Defendant, THE CITY OF NEW YORK;
10. That this action was commenced within one (1) year and ninety (90) days after the happening of the event upon which the claim herein sued upon is based;
11. Plaintiff has complied with all conditions precedent for the commencement of this action;
12. That on September 24, 2021, Plaintiff, was lawfully present at his place of employment, New York Presbyterian Hospital, located at 3959 Broadway New York, NY 10032;
13. That on or about, September 24, 2021 Plaintiff, while in the course of his employment responded to an alarm activation that involved a prisoner in Defendant NEW YORK CITY POLICE DEPARTMENT’s custody.
14. That on or about, September 24, 2021, Defendant OFFICER PAUL, while working for Defendant NEW YORK CITY POLICE DEPARTMENT, while present at 3959 Broadway New York, NY 10032, failed to follow protocol and multiple sections of the NEW YORK CITY POLICE DEPARTMENT Patrol Guide with respect to the transport, custody, and care of the above referenced prisoner;

15. That Defendant NEW YORK CITY POLICE DEPARTMENT failed to comply with multiple sections of the NEW YORK CITY POLICE DEPARTMENT Patrol Guide with respect to the above referenced prisoner;
16. That as a result of the Defendants' negligence and violations of the NEW YORK CITY POLICE DEPARTMENT Patrol Guide, the above referenced prisoner escaped;
17. That as a result of the escape of the above referenced prisoner's escape, Defendant OFFICER PAUL requested the aid of Plaintiff;
18. That Plaintiff did provide aid in response to the aforementioned request and sustained serious injuries as a result;
19. That the Defendants created and/or exacerbated the dangerous condition with respect to the prisoner;
20. That the above occurrence was caused solely by and through the negligence of the Defendants; their agents servants and/or employees, herein, without any negligence on the part of the Plaintiff contributing thereto;
21. That the Defendants had both actual and constructive notice of the dangerous conditions relating to the prisoner;
22. Plaintiff asserts an exemption from the abolition of joint and several liability pursuant to Article 16 of the C.P.L.R.;
23. That the Defendants, and/or each of them, and/or their agents, servants, associates and/or employees were negligent, careless and reckless, in that they:
 - a) Provided inadequate security;
 - b) Improperly, carelessly and negligently controlled and supervised the prisoner in their custody;

- c) Failed to protect employees and bystanders from the prisoner brought by Defendants upon said premises;
- d) Violated those statutes, rules, regulations and ordinances governing the transport and supervision of prisoners;
- e) Caused, allowed and permitted Plaintiff to be injured;
- f) Hired incompetent persons to supervise prisoners;
- g) Caused, allowed and permitted Plaintiff to be placed in a position of peril;

24. That as a result of the negligence of the Defendants, Plaintiff became, still is and for a long time to come will be sick, sore, lame, bruised, injured, disabled and wounded in and about the various parts of her head, limbs, body, blood vessels and surrounding tissues, and has suffered severe and extreme mental shock, anguish and psychic injuries, and that Plaintiff was otherwise injured, and upon information and belief, said injuries are permanent. That by reason of the foregoing, Plaintiff was obligated to and did necessarily employ medical aid, hospital services, medicinal and medical supplies in an attempt to cure the aforesaid injuries, and has been prevented from his/her usual duties and will be so prevented for a long time to come;

25. That by reason of the foregoing, Plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts of the State of New York.

WHEREFORE, the Plaintiff, ORLANDO TORRES, demands judgment against the Defendant, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and OFFICER PAUL in an amount exceeding the jurisdictional limits of all lower courts of the State of New York, together with interest, costs and disbursements of this action.

Dated: New York, New York
May 10, 2022

Andrew M. Laskin

Andrew M. Laskin, Esq.

HACH & ROSE, LLP

Attorneys for Plaintiff

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Attorneys for Plaintiff

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Lake Success, NY 11042

(516) 355-9612

VERIFICATION

STATE OF NEW YORK)
) SS:
COUNTY OF NEW YORK)

I, ORLANDO TORRES, being duly sworn, depose and say:

I am the plaintiff in the within action; I have read the foregoing **SUMMONS AND COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe to be true.

X 
ORLANDO TORRES

Sworn to before me

12th day of May, 2022.


Notary Public

Genesis Rodriguez
Notary Public, State of New York
Reg. No. 01RO6423654
Qualified in Bronx County
Commission Expires 10/18/2025

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THE CITY OF NEW YORK, NEW YORK CITY
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PATROL OFFICER "JOHN" PAUL Shield # 20739,

Defendants.

SUMMONS AND COMPLAINT

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